

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403136	POINSETTE VS TARGET CORPORATION	MOTION TO TAX COSTS

Tentative Ruling: The Court DENIES Plaintiff's request for judicial notice of Exhibits 1 through 6. The Court GRANTS Plaintiff's motion to tax costs.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507157	GELLER VS AUTOMOBILE CLUB OF SOUTHERN CALIFORNIA	DEMURRER ON COMPLAINT

Tentative Ruling: At the prior hearing, Defendants were ordered to meet and confer as required by CCP §§ 430.41 and 435.5 and file the requisite declaration. After the hearing, the parties filed a Stipulation re Filing of Plaintiff's Amended Complaint and a declaration stating a virtual meet and confer conference occurred on 6/4/25. (Dec.Kamau ¶ 2.) Plaintiff agreed to file and serve an amended pleading within ten days of the Court's order. (Id. ¶¶ 3-4.) While meet and confer efforts occurred as required, no amended Complaint has yet been filed.

On the merits, the Court **SUSTAINS** the demurrer to each cause of action in the Complaint with thirty days' leave to amend.

Analysis:

1st Cause of Action for False Advertising (Bus. & Prof. Code § 17500) (FAL)

The False Advertising Law ("FAL") prohibits advertising "which is untrue or misleading, and which is known, or which by the exercise of reasonable care should be known, to be untrue or misleading." (Bus. & Prof. Code, § 17500.) To state a claim for false advertising, a plaintiff must allege that the defendant intended to either dispose of real or personal property or perform services; and either (a) defendant publicly disseminated advertising which (1) contained a statement which was untrue or misleading, and (2) which the defendant knew, or in the exercise of reasonable care should have known, was untrue or misleading, and (3) which concerned the real or personal property or services or their disposition or performance; or (b) defendant publicly disseminated advertising with the intent not to sell the property or services at the price stated or as advertised. (Bus. & Prof. Code, § 17500, *et. seq.*; *Bower v. AT&T Mobility, LLC* (2011) 196 Cal.App.4th 1545, 1555; *People v. Toomey* (1984) 157 Cal.App.3d 1, 16.)

Here, the Complaint alleges that "Defendants made false or misleading statements in advertising or other public representations"; that Defendants represented to Plaintiff they "would provide homeowners' insurance with certain terms, conditions,